

HOUSE BILL 1462

By Brooks

AN ACT to amend Tennessee Code Annotated, Title 47
and Title 66, relative to homeowners' associations.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 66-27-701, is amended by adding the following as new subdivisions:

() "Emergency vehicle" means a passenger motor vehicle, motorcycle, or bicycle designated by a law enforcement agency or the entity for which another first responder works for official use by the first responder;

() "First responder" means a firefighter, emergency services personnel, including an emergency medical technician or paramedic or emergency management personnel, or law enforcement officer;

() "Law enforcement agency" means a lawfully established federal, state, or local public agency that is responsible for the prevention and detection of crime, local government code enforcement, and the enforcement of penal, traffic, regulatory, game, or controlled substance laws;

() "Law enforcement officer":

(A) Means an individual employed by the federal, state, or a local government as a member of the federal, state, or local government's law enforcement agency, and trained and actively engaged in police work for the investigation into and detection of crime; and

(B) Includes, but is not limited to, a capitol police officer, employee of the Tennessee highway patrol, Tennessee bureau of investigation, or Tennessee

wildlife resources agency, and park rangers employed by the division of parks and recreation in the department of environment and conservation.

SECTION 2. Tennessee Code Annotated, Title 66, Chapter 27, Part 7, is amended by adding the following as a new section:

A homeowners' association shall not:

(1) Prohibit or effectively prohibit a first responder from parking an emergency vehicle at the first responder's residence or on a roadway adjacent to the first responder's real property, including by adopting new or amending existing declarations or rules and regulations; or

(2) Penalize or threaten to penalize a first responder regarding the first responder parking an emergency vehicle at the first responder's residence or on a roadway adjacent to the first responder's real property.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it, and applies to declarations and rules and regulations adopted or amended on or after that date.